

beyond the limits of its own legal powers, could not consent as *true owner* (*k*).

19. **Whether bare trustee a "true owner."** — Whether the permission of a *bare trustee* can be said to be *that of the "*true owner*," to the prejudice of his [*245] innocent *cestuis que trust* is a question of some difficulty (*a*). It has been decided that a *cestui que trust* absolutely entitled is a *true owner* within the meaning of the Act (*b*). But here the trustee is a mere passive depositary, and can do *no* act without the direction of his *cestui que trust* (*c*); but the case is different, where, as in a marriage settlement, a fund is vested in trustees in trust for persons under disability or not in existence, and it is therefore intended that they should act on behalf of all parties as the absolute proprietors. It would seem that here the trustees are regarded as the true owners, and that if the funds are left by the trustees in the order and disposition of the bankrupt, they are so left with the consent of the true owners (*d*).

20. **Of judgments against the trustee.** — *Judgments*, at least so far as they affect *lands* (for execution against goods and chattels is by common law), derive their origin from certain statutory enactments (*e*).

Had trusts been established at the time when these statutes were passed, the construction would probably have been the same as in the case of the Bankruptcy Acts, that is, judgments would have been held to bind those lands only of which the conusee was seised beneficially; but trusts at the period of which we are speaking had not made their appear-

(*k*) *Great Eastern Railway Company v. Turner*, 8 L. R. Ch. App. 149.

(*a*) See *Ex parte Richardson*, Buck, 480; *Ex parte Horwood*, 1 Mont. & Mac. 169, Mont. 24; *Viner v. Cadell*, 3 Esp. 88; *Ex parte Geaves*, 8 De G. M. and G. 291.

(*b*) *Ex parte Burbridge*, 1 Deac. 131; 4 Deac. & Ch. 87; and see *Day v. Day*, 1 De G. & J. 144.

[*c*] See *Ex parte Culley*, 9 Ch. D. 307; *Ex parte Dearle*, 14 Q. B. D. 184, which show that a mere trustee

of a debt for an absolute beneficial owner not under disability cannot alone sustain a petition for adjudication of bankruptcy against the debtor.]

(*d*) *Ex parte Caldwell*, 13 L. R. Eq. 188; *Darby v. Smith*, 8 T. R. 82; *Ex parte Dale*, Buck, 365; and see *Hensley v. Wills*, 16 L. T. N. S. 582.

(*e*) 11 E. 1; 13 E. 1, st. 1, c. 18; 13 E. 1, st. 3; 27 E. 3, st. 2, c. 9; see Co. Lit. 289, b.